

EX-10.1

2

EX-10.1

EXHIBIT 10.1

900 NORTH POINT PARKWAY

ALPHARETTA, GEORGIA 30005

OFFICE LEASE AGREEMENT

BETWEEN

BRE/COH

AND

CLEARSID

OFFICE LEASE AGREEMENT

THIS OFFICE LEASE AGREEMENT (this "Lease") is made and entered into as of November 21, 2016, by and between BRE/COH

GA LLC, a
corporation

1. Basic Lease Information.

1.01

"Building" shall mean the building located at 900 North Point Parkway, Alpharetta, Georgia 30005, and commonly known as 900 North Point. "Rentable Square Footage of the Building" is

deemed to

1.02

"Premises" shall mean the area shown on Exhibit A-1 to this Lease. The Premises is located on the 2nd floor and known as suite 250. If

the Premises
floor(s) sha

be

1.03

? Base Rent ?:

Months of Term

Annual

Rate

Monthly

Base Rent

Commencement Date ? Last day of 12 th

full calendar

\$

22.50

\$

35,145.00

First day of 13 th full calendar month of the

Term - Las

\$

23.18

\$

36,207.16

First day of 25 th full calendar month of the

Term - Las

\$

23.88

\$

37,300.56

First day of 37 th full calendar month of the

Term - Las

\$

24.60

\$

38,425.20

First day of 49th full calendar month of the

Term - Las

\$

25.34

\$

39,581.08

First day of 61st full calendar month of the

Term - Las

\$

26.10

\$

40,768.20

First day of 73rd full calendar month of the

Term - Term

\$

26.88

\$

41,986.56

Notwithstanding anything in this Section of the Lease to the contrary, so long as Tenant is not in Default

(as defined
of \$35,145

beginning with the 1st full calendar month of the Term (the ? Base Rent Abatement Period ?). The total amount
of Base Rent

abated dur
Defaults at
Lease, all

1.04

? Tenant?s Pro Rata Share ?: 14.3763%.

1.05

? Base Year ?: 2017.

1.06

? Term ?: The period commencing on the Commencement Date (defined below) and, unless terminated earlier in accordance with this Lease, ending on the last day of the 78 th full calendar month following the Commencement Date (the ? Termination Date ?). The ? Commencement Date ? shall mean the date on which the Landlord Work (defined

in Section .
be Substar

1.07

Allowance(s): an amount not to exceed \$679,296.45, as further described in the attached Exhibit C .

1.08

? Security Deposit ?: As of the date of this Lease, there is no Security Deposit.

1.09

? Guarantor ?: As of the date of this Lease, there is no Guarantor.

1.10

? Broker(s)?: Lavista Associates, Inc. (? Tenant?s Broker ?), which represented Tenant in connection with this transaction, and Lincoln Property Company (? Landlord?s

Broker ?), v

2

1.11

? Permitted Use?: General office use, plus use of lab space for the sole purpose of conducting testing/engineering related to Tenant?s business, provided that such lab space use shall not exceed 10%

of the total
the terms o

1.12

? Notice Address(es)?:

Landlord:

Tenant:

BRE/COH GA LLC

c/o Equity C

2311 Cedar Springs Road, Suite 300

Dallas, Tex

Attention: Asset Manager

With copies of any notices to Landlord shall be sent to:

BRE/COH GA LLC

c/o Lincoln

900 North Point Parkway, Suite 100

Alpharetta,

Attention: Property Manager

and

BRE/COH GA LLC

c/o Equity C

222 South Riverside Plaza

Suite 2000

Chicago, Illinois 60606

Attention: M

Prior to the Commencement Date:

Clearside Biomedical, Inc.

1220 Old A

Suite 300

Alpharetta,

From and after the Commencement Date:

Clearside Biomedical, Inc.

900 North Point Parkway

Suite 250

Alpharetta, Georgia 30005

1.13

? Business Day(s) ? are Monday through Friday of each week, exclusive of New Year's Day, Presidents Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day and Christmas Day

(? Holiday
buildings in

1.14

? Landlord Work ? means the work that Landlord is obligated to perform in the Premises pursuant to a separate agreement (the ? Work Letter ?) attached to this Lease as

Exhibit C .

1.15

? Property ? means the Building and the parcel(s) of land on which it is located and, at Landlord's discretion, the parking facilities and other improvements, if any, serving the Building and the

parcel(s) of

1.16

? Letter of Credit ? is as described in Section 5 of Exhibit F attached hereto.

3

2. Lease Grant .

Landlord hereby leases the Premises to Tenant and Tenant hereby leases the Premises from Landlord. Landlord further grants to Tenant the non-exclusive right

to use any
? Common

3.02 Subject to Landlord's obligation to perform Landlord Work, the Premises are accepted by Tenant in "as is" condition and

configuration
Tenant agrees
Landlord represents

forth any portions of the Landlord Work that are not in conformity with the Landlord Work as required by the terms of this Lease. Notwithstanding the foregoing, at the request of Landlord, such

construction
begins to
Landlord W

3.03 If (i) Landlord has received all required permits for the performance of the Landlord Work within 30 days after the date of this

Lease, and
Date ?), Te

4.01 Tenant shall pay Landlord, without any setoff or deduction, unless expressly set forth in this Lease, all Base Rent and Additional Rent

due for the

5

as ? Rent ?). ? Additional Rent ? means all sums (exclusive of Base Rent) that Tenant is required to pay Landlord under this Lease. Tenant shall pay and be liable

for all renta
Rent and r
each calen

The Premises shall be used for the Permitted Use and for no other use whatsoever. Tenant shall comply with all statutes, codes, ordinances, orders, rules and

regulations
Disabilities

6

limit for the Building. Tenant shall comply with the rules and regulations of the Building attached as Exhibit E and such other reasonable rules and regulations adopted by Landlord

from time to time
rules and regulations of the
Building.

6. Security Deposit.

The Security Deposit shall be

7.01 Landlord shall furnish Tenant with the following services: (a) water for use in the Base Building lavatories; (b) customary

heat and
temperature control
August on

7

7.02 Electricity used by Tenant in the Premises shall, at Landlord's option, be paid for by

Tenant either
payable by
directly by

8. Leasehold Improvements.

All improve

8

Required Removables. If Landlord fails to advise Tenant in writing as to whether the Alteration or any portion of the Alteration will be designated as a Required Removable (the "Required

Removable
second rec
Advice mus

9.01 Tenant shall periodically inspect the Premises to identify any conditions that are dangerous or in need of maintenance or repair. Tenant

shall prom
perform all
Lease, and

9.03 Tenant shall not make alterations, repairs, additions or improvements or install any Cable (collectively referred to as

? Alteration
unreasonable

9

format if requested by Landlord), although such plans and specifications need be supplied to Landlord only if they are necessary for the issuance of required permits or if reasonably deemed

necessary
acceptable
and vertical

10. Entry by Landlord.

Landlord m

11.01 Except in connection with a Business Transfer (defined in Section 11.04), Tenant shall not assign, sublease, transfer or encumber

any interes
? Transfer

10

under this Lease. In addition it is agreed that Landlord's consent shall not be considered unreasonably withheld if the proposed transferee is a governmental entity or an occupant of the

Building or

11.03 Tenant shall pay Landlord 50% of all rent and other consideration which Tenant receives as a result of a Transfer that is in excess of

the Rent paid by
Landlord for the
excess rent

11

11.04 Tenant may (i) assign this Lease to a successor to Tenant by merger, consolidation,

reorganiza
a portion of

11.05 Notwithstanding anything to the contrary contained in this Section 11, neither Tenant nor any other person having a right to

possess, u
shall enter
Premises

or by insuring over the lien in the manner prescribed by the applicable lien Law and, if Tenant fails to do so, Tenant shall be deemed in Default under this Lease and, in addition to any other

remedies a
over or oth
without

14. Tenant's Insurance. Tenant shall maintain the following coverages in the following amounts:

14.01 Commercial General Liability Insurance covering claims of bodily injury, personal injury and property damage arising out of

Tenant's
occurrence
(and not m

13

items and in amounts that meet any co-insurance clauses of the policies of insurance, and shall include coverage for damage or other loss caused by fire or other peril, including vandalism and

malicious r
and explos

14.05 Tenant shall maintain such increased amounts of the insurance required to be carried by Tenant under this

Section 14, and such

other types
reasonably
by landlord

Subject to Section 16, each party waives, and shall cause its insurance carrier to waive, any right of recovery against the other for any loss of or

damage to
have been
insurance s

16.01 If all or any portion of the Premises becomes untenable or inaccessible by fire or other casualty to the Premises or the Common Areas

(collectively
Landlord to
methods, to

14

Areas necessary to provide access to the Premises (? Completion Estimate ?). Landlord shall promptly forward a copy of the Completion Estimate to Tenant. If the Completion Estimate

indicates th
tenantable
this Lease

16.02 If this Lease is not terminated, Landlord shall promptly and diligently, subject to reasonable delays for insurance adjustment or other

matters be
be to subst

or any other

15

17. Condemnation.

Either party may terminate this Lease if any material part of the Premises is taken or condemned for any public or quasi-public use under Law, by eminent

domain or
Lease if the

18. Events of Default.

In addition

19.01 Upon Default, Landlord shall have the right to pursue any one or more of the following remedies:

(a) Terminate this Lease, in which case Tenant shall immediately surrender the Premises to Landlord. If Tenant fails to surrender the

Premises, l

16

with Law, may enter upon and take possession of the Premises and remove Tenant, Tenant's Property and any party occupying the Premises. Tenant shall pay Landlord, on demand, all past due

Rent and o
all Costs o
Premises.

19.02 In lieu of calculating damages under Section 19.01, Landlord may elect to receive as damages the sum of
(a) all Rent accrued

through the
Rent that T
the Prime

19.03 If Tenant is in Default of any of its non-monetary obligations under this Lease, Landlord shall have the right
to perform such

obligations
administrat
re-entering

LANDLORD (AND OF ANY SUCCESSOR LANDLORD) SHALL BE LIMITED TO THE INTEREST

OF LANDL
PROPERTY
LANDLOR

21. Relocation.

Intentionall

22. Holding Over.

If Tenant fa

23. Subordination to Mortgages; Estoppel Certificate.

23.01 Tenant accepts this Lease subject and subordinate to any mortgage(s), deed(s) of trust, deeds to secure debt, ground lease(s) or other

lien(s) nov
modification
the benefit

18

23.02 In the event Mortgagee enforces its rights under the Mortgage, Tenant, at Mortgagee's

option, will
liable for o
before the

24. Notice.

All demands

19

restoration of the Premises. Landlord shall not be responsible for the value, preservation or safekeeping of Tenant's Property. Tenant shall pay Landlord, upon demand, the expenses and

storage ch
days after
option, title

26.

Miscellaneous.

26.01 This Lease shall be interpreted and enforced in accordance with

the Laws
irrevocably
of this Leas

26.02 If Tenant fails to pay any Rent or other sum due and owing under this Lease, and such sum is thereafter collected by or through an

attorney at

such collection
recover

26.03 Whenever a period of time is prescribed for the taking of an action by Landlord or Tenant

(other than
shall be ex
shortages

26.04 Landlord shall have the right to transfer and assign, in whole or in part, all of its rights and obligations under this Lease and in the

Building and
Tenant agree
provided th

26.08 This Lease does not grant any rights to light or air over or about the Building. Landlord excepts and reserves exclusively to itself any

and all right
the Proper
materially a

26.09 Submission of this Lease by Landlord is not an offer to enter into this Lease but rather is a solicitation for such an offer by Tenant.

Landlord shall
agrees that
period of 12

26.11 This Lease may be executed in counterparts and shall constitute an agreement binding on all parties notwithstanding that all parties are

not signatory
thereof reflecting
counterpart

22

Landlord and Tenant have executed this Lease under seal in two or more counterparts as of the day

and year first

LANDLORD:

BRE/COH GA LLC, a Delaware limited liability company

By:

/s/ Mark W. Smith

Name:

Mark W. Smith

Title:

Managing Director

TENANT:

CLEARSIDE BIOMEDICAL, INC., a Delaware corporation

By:

/s/ Daniel H. White

Name:

Daniel H. White

Title:

President & CEO

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EXHIBIT A-1

OUTLINE AND LOCATION OF PREMISES

This Exhibit is attached to and made a part of the Office Lease Agreement (the "Lease") by and between
BRE/COH GA LLC, a

Delaware limited liability company
(the "Tenant")

A-1

EXHIBIT A-2

OUTLINE AND LOCATION OF REFUSAL SPACE

This Exhibit is attached to and made a part of the Office Lease Agreement (the "Lease") by and between
BRE/COH GA LLC, a

Delaware limited liability company
(the "Tenant")

A-2

EXHIBIT A-3

OUTLINE AND LOCATION OF DEFERRED SPACE

This Exhibit is attached to and made a part of the Office Lease Agreement (the "Lease") by and between
BRE/COH GA LLC, a

Delaware limited liability company
(the "Tenant")

A-3

EXHIBIT B

EXPENSES AND TAXES

This Exhibit is attached to and made a part of the Office Lease Agreement (the "Lease") by and between
BRE/COH GA LLC, a

Delaware limited liability company
("Tenant")

1.01 Tenant shall pay Tenant's Pro Rata Share of the amount, if any, by which Expenses (defined below) for
each calendar year during the Term exceed

Expenses
below) for each
or

B-1

2. Expenses .

2.01 ? Expenses ? means all costs and expenses incurred in each calendar year in connection with operating, maintaining, repairing, and

managing t
Expenses,
limited to:

B-2

ownership of the Building which, if provided directly by a general manager/property manager or its general support staff, would normally be chargeable as an operating expense of a comparable

office Building
extent to which
costs of purchase

2.03 If at any time during a calendar year the Building is not at least 95% occupied (or a service provided by Landlord to tenants of the Building generally

is not provided
free rent, nor
been 95%

B-3

Excess, then Taxes for that year will be retroactively adjusted and Landlord shall provide Tenant with a credit, if any, based on the adjustment. Likewise, if a change is obtained for Taxes for

the Base Y
recomputed
Excess with

B-4

compensation shall in no way be contingent upon or correspond to the financial impact on Tenant resulting from the review. Tenant shall be solely responsible for all costs, expenses and fees

incurred for
notwithstan
question w

B-5

EXHIBIT C

WORK LETTER

This

As used in this Work Letter, the "Premises" shall be deemed to mean the Premises and the Deferred Space, as initially defined in the attached

Lease.

1.

Landlord Work.

1.01

This Work Letter shall set forth the obligations of Landlord and Tenant with respect to the improvements to be performed in the Premises for Tenant's use. All improvements described in this Work Letter to be

constructed
agreed that
the

1.02

Landlord's architect shall prepare the final architectural, electrical and mechanical construction drawings,

plans and s
to approval
delayed.

C-1

disapproval thereof, and if Tenant does not approve any of the revised Plans, of the changes required so that they will meet Tenant's approval. This iterative process shall continue until

Landlord a
writing (inc
above, the

1.03

If Landlord's estimate and/or the actual cost of construction shall exceed the Allowance, Landlord, prior to commencing any construction of Landlord Work, shall submit to Tenant a written estimate setting forth the

anticipated
permit fees
cost estima

1.04

If Landlord's estimate and/or the actual cost of construction shall exceed the Allowance, if any (such amounts exceeding the Allowance being herein referred to as the "Excess Costs"), Tenant shall

pay to Lan
statements
determining

1.05

If Tenant shall request any change, addition or alteration in any of the Plans after approval by Landlord, Landlord shall have such revisions to the drawings prepared, and Tenant shall reimburse Landlord for the cost

thereof, plu
revisions, l
reason of s

1.06

Following approval of the Plans and the payment by Tenant of the required portion of the Excess Costs, if any, Landlord shall cause the Landlord Work to be constructed substantially in accordance with the approved

Plans. Land

C-2

1.07

Landlord, provided Tenant is not in default under the Lease or this Work Letter, agrees to provide Tenant with an allowance (the "Allowance") in an amount not to exceed \$679,296.45 to be applied toward

the cost of
Work, Ten
Section 1.0

Upon completion of the Landlord Work and payment of all costs related thereto, and provided Tenant is not in Default

under the L
Allowance

(a)

Tenant's Moving Costs (described below). Landlord shall disburse such portion of the Credit Allowance requested by Tenant for such purpose within 30 days after Landlord's receipt of paid invoices from

Tenant with

(b)

Tenant's FF&E Costs (described below). Landlord shall disburse such portion of the Credit Allowance requested by Tenant for such purpose within 30 days after Landlord's receipt of invoices from Tenant

with respec
Allowance
to Tenant a

Tenant's

"Moving C
location in
equipment,

In no event shall Landlord have any obligation to apply any portion of the Allowance against Tenant's Moving Costs, FF&E Costs or the

Rent after ,
any credit,

C-3

2.

Corridor Work. In addition to the Landlord Work and the Conference Room Work (as defined below), Landlord, at Landlord's sole cost and expense shall perform certain corridor work in the Common Area

corridor ad
?). The sco
no

3.

Conference Room Work. In addition to the Landlord Work and the Corridor Work, Landlord, at Landlord's sole cost and expense shall construct a 50-person training/conference room (the

? Conferen
methods, n

4.

This Exhibit shall not be deemed applicable to any additional space added to the Premises at any time or from time to time, whether by any options under the Lease or otherwise, or to any portion of the original Premises

or any add
by any opt
supplemen

C-4

EXHIBIT D

COMMENCEMENT LETTER

(EXAMPLE)

Date

Tenant

Address

Re:

Commencement Letter with respect to that certain Lease dated as of , 2016, by and between BRE/COH GA LLC,
a Delaware limited liability

company ,
rentable sq

Lease Id:

Business

Unit Number

1.

The Commencement Date of the Lease is ;

2.

The Termination Date of the Lease is .

Please acknowledge the foregoing and your acceptance of possession by signing all 3 counterparts of this
Commencement Letter in the space

provided a
letter, or to
letter

Sincerely,

Authorized Signatory

Acknowledged and Accepted:

Tenant:

By:

Name:

Title:

Date:

D-1

EXHIBIT E

BUILDING RULES AND REGULATIONS

This Exhibit is attached to and made a part of the Office Lease Agreement (the "Lease") by and between
BRE/COH GA LLC, a

Delaware limited liability company,
("Tenant")

3. No signs, advertisements or notices shall be painted or affixed to windows, doors or other parts of the Building,
except those of such

color, size,
numbers and
standard

5. Tenant shall not place any lock(s) on any door in the Premises or Building without Landlord's prior written consent, which consent

shall not be
access code
the entry door

6. All contractors, contractor's representatives and installation technicians performing work in the Building shall be subject to

Landlord's
with Landlord

E-1

rules, regulations, policies and procedures, which may be revised from time to time. Landlord has no obligation to allow any particular telecommunication service provider to have access to the

Building or
Landlord by

7. Movement in or out of the Building of furniture or office equipment, or dispatch or receipt by Tenant of merchandise or materials requiring

the use of
to hours re
listing of th

8. Landlord shall have the right to approve the weight, size, or location of heavy equipment or articles in and about the Premises, which

approval s
liability for a

9. Corridor doors, when not in use, shall be kept closed.

10. Tenant shall not: (a) make or permit any improper, objectionable or unpleasant noises or odors in the Building, or otherwise

interfere in
cause to be

13. Tenant shall not use or occupy the Premises in any manner or for any purpose which might injure the reputation or impair the present or

future value
for lodging.

E-2

14. Tenant shall not take any action which would violate Landlord's labor contracts or which

would cause
tenant's or

15. Tenant shall not install, operate or maintain in the Premises or in any other area of the Building, electrical equipment that would

overload the
Landlord. The
electric or gas

16. Tenant shall not operate or permit to be operated a coin or token operated vending machine or similar device (including, without

limitation, the
candy, cigarette
invitees.

17. Bicycles and other vehicles are not permitted inside the Building or on the walkways outside the Building, except in areas designated by

Landlord.

19. Landlord shall have the right to prohibit the use of the name of the Building or any other publicity by Tenant that in Landlord's

sole opinion
shall refrain

20. Neither Tenant nor its agents, employees, contractors, guests or invitees shall smoke or permit smoking in the Common Areas, unless a

portion of t
parties allo
Landlord sh

E-3

22. Deliveries to and from the Premises shall be made only at the times in the areas and through

the entrance
Premises i
Areas, any

E-4

EXHIBIT F

ADDITIONAL PROVISIONS

This Exhibit is attached to and made a part of the Office Lease Agreement (the "Lease") by and between BRE/COH GA LLC, a

Delaware l
("Tenant")

1.

Parking.

1.01.

During the Term, Tenant agrees to lease from Landlord and Landlord agrees to lease to Tenant a total of 67 unreserved parking spaces (collectively, the "Spaces") on a non-exclusive first come, first

served bas
Building (th
on the

1.02.

During the Term the Spaces shall be free of charge.

1.03.

Except for particular spaces and areas designated by Landlord for reserved parking, all parking in the Parking Facility shall be on an unreserved, first-come, first-served basis. Landlord shall not provide any other

tenant in th
parking spa
of 4 reserv

1.04.

Landlord shall not be responsible for money, jewelry, automobiles or other personal property lost in or stolen from the Parking Facility regardless of whether such loss or theft occurs when the Parking Facility is

locked or c
limiting the
using the P

1.05.

Landlord shall have the right from time to time to designate the location of the Spaces and to promulgate

reasonable
limited to,
direction of

F-1

all reasonable additions and amendments thereto. Such rules and regulations shall be generally applicable, and generally applied in the same manner, to all parties parking in the Parking

Facility.

1.06.

Tenant shall not store or permit its employees to store any automobiles in the Parking Facility without the prior written consent of Landlord. Except for emergency repairs, Tenant and its employees shall not perform any

work on an

employees
thereof

1.07.

Landlord shall have the right to temporarily close the Parking Facility or certain areas therein in order to perform necessary repairs, maintenance and improvements to the Parking Facility.

1.08.

Tenant shall not assign or sublease any of the Spaces without the consent of Landlord. Landlord shall have the right to terminate this Parking Agreement with respect to any Spaces that Tenant desires to sublet or

assign.

1.09.

Landlord may elect to provide parking cards or keys to control access to the Parking Facility. In such event, Landlord shall provide Tenant with one card or key for each Space that Tenant is leasing hereunder, provided

that Landlord
keys and to

1.10.

Landlord hereby reserves the right to enter into a management agreement or lease with an entity for the Parking Facility (? Parking Facility Operator ?). In such event, Tenant, upon request of Landlord,

shall enter
liability or c
Landlord

2.

Extension Option.

2.01.

Grant of Option; Conditions. Tenant shall have the right to extend the Term (the ? Extension Option ?) for one additional period of 5 years commencing on the day following the Termination Date of

the initial T

a.

Landlord receives irrevocable and unconditional written notice of exercise (? Extension Notice ?) not less than 9 full calendar months prior to the expiration of the initial Term and not more than 12 full

calendar m

F-2

b.

Tenant is not in Default under the Lease beyond any applicable cure periods at the time that Tenant delivers its Extension Notice; and

c.

No part of the Premises is sublet (other than pursuant to a Business Transfer, as defined in Section 11.04 of the Lease) at the time that Tenant delivers its Extension Notice; and

d.

The Lease has not been assigned (other than pursuant to a Business Transfer, as defined in Section 11.04 of the Lease) prior to the date that Tenant delivers its Extension Notice.

2.02.

Terms Applicable to Premises During Extension Term.

a.

The initial Base Rent rate per rentable square foot for the Premises during the Extension Term shall equal the Prevailing Market (hereinafter defined) rate per rentable square foot for the Premises. Base Rent during the

Extension
Prevailing
accordance

b.

Tenant shall pay Additional Rent (i.e. Taxes and Expenses) for the Premises during the Extension Term in accordance with the Lease, and the manner and method in which Tenant reimburses Landlord for Tenant's share

of Taxes a
determining

2.03.

Definition of Prevailing Market. For purposes hereof, "Prevailing Market" shall mean the arm's length fair market annual rental rate per rentable square foot under renewal leases and

amendmen
space com
Alpharetta,

F-3

2.04.

Effect of Failure to Give Notice; Arbitration Procedure. Tenant shall exercise the Extension Option by

giving the
period des
30 days of

F-4

of its counsel and the losing party shall pay for the fees of the third arbitrator and the reasonable and necessary expenses incident to the proceedings; provided however, if a party fails to

appoint an

2.05.

Extension Amendment. If Tenant is entitled to and validly exercises its Extension Option, Landlord shall prepare an amendment (the "Extension Amendment") to reflect changes in the Base Rent,

Term, Term
a reasonable
Landlord w

2.06.

Subordination. Notwithstanding anything herein to the contrary, Tenant's Extension Option is subject and subordinate to the expansion rights (whether such rights are designated as a right of first offer,

right of first

2.07.

Time of the Essence. Time is of the essence with respect to all of the time periods set forth in this Section 2.

2.08.

Personal to Tenant. Notwithstanding anything herein to the contrary, Tenant's Extension Option is personal to Tenant and in no event shall such Extension Option be assignable (other than pursuant to a

Business T

3.

Right of First Refusal.

3.01.

Grant of Option; Conditions. Tenant shall have the one time right of first refusal (the "Right of First Refusal") with respect to the approximately 910 rentable square feet of space on the

2 nd floor
Tenant's F

a.

Tenant is in Default under the Lease beyond any applicable cure periods at the time that Landlord would otherwise deliver the Advice; or

F-5

b.

the Premises, or any portion thereof, is sublet (other than pursuant to a Business Transfer, as defined in Section 11.04 of the Lease) at the time Landlord would otherwise deliver the Advice; or

c.

the Lease has been assigned (other than pursuant to a Business Transfer, as defined in Section 11.04 of the Lease) prior to the date Landlord would otherwise deliver the Advice; or

d.

Tenant is not occupying the Premises on the date Landlord would otherwise deliver the Advice; or

e.

the Refusal Space is not intended for the exclusive use of Tenant during the Term; or

f.

the existing tenant or occupant in the Refusal Space is interested in extending or renewing its lease for the Refusal Space or entering into a new lease for such Refusal Space or any other person or entity having any

pre-existing

3.02.

Terms for Refusal Space.

a.

The term for the Refusal Space shall commence upon the commencement date stated in the Advice and thereupon such Refusal Space shall be considered a part of the Premises, provided that all of the terms stated in the

Advice, including
and only to
to the

b.

The Refusal Space (including improvements and personalty, if any) shall be accepted by Tenant in its as is condition and as-built configuration existing on the earlier of the date Tenant takes possession of the Refusal

Space or th
by Landlor
Landlord is

3.03.

Termination of Right of First Refusal. The rights of Tenant hereunder with respect to the Refusal Space

shall termin
failure to ex

F-6

(iii) the date Landlord would have provided Tenant an Advice if Tenant had not been in violation of one or more of the conditions set forth in Section 3.01 above. In addition, if

Landlord p
(whether s
with respect

3.04.

Refusal Space Amendment. If Tenant exercises its Right of First Refusal, Landlord shall prepare an amendment (the "Refusal Space Amendment") adding the Refusal Space to the Premises on the terms

set forth in
Tenant's F
Tenant with

3.05.

Subordination . Notwithstanding anything herein to the contrary, Tenant's Right of First Refusal is subject and

subordinate to (i) the renewal or extension rights of any tenant leasing all or any portion

of the Refu
right of first

3.06.

Time of the Essence. Time is of the essence with respect to all time periods set forth in this Section 3.

3.07.

Personal to Tenant. Notwithstanding anything herein to the contrary, Tenant's Right of First Refusal is personal to Tenant and in no event shall such Right of First Refusal be assignable or exercisable by

any party o
Section 11

4.

Monument Signage.

4.01.

During the initial Term and any extension thereof and provided that Tenant is not in Default under the Lease

beyond an
any extens
Tenant's s

F-7

manner in which such signage is attached to the Monument Sign, shall be subject to the reasonable approval of Landlord, such approval not to be unreasonably withheld, conditioned or delayed and

the approv
on the Mo
maintenan

4.02.

Upon expiration or earlier termination of the Lease or Tenant's right to possession of the Premises, or if Tenant is in Default under the Lease beyond any applicable notice and cure period, or if Tenant leases or

occupies le

name on t
Tenant?s s

4.03.

Notwithstanding anything herein to the contrary, Tenant?s rights with respect to the Monument Sign are personal to Tenant and in no event shall the rights set forth in this Section 4 be assignable.

5.

Letter of Credit.

5.01.

General Provisions . Concurrently with Tenant?s execution of this Lease, Tenant shall deliver to

Landlord, a
and damage
Lease ,

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the Letter of Credit held by Landlord expires earlier than the Final LC Expiration Date (whether by reason of a stated expiration date or a notice of termination or non-renewal given by the

issuing bar
Replaceme
by

5.02.

Drawings under Letter of Credit . Upon Tenant's failure to comply with one or more provisions of this Lease, or as otherwise specifically agreed by Landlord and Tenant pursuant to this Lease or any amendment

hereof, Landlord
of Credit a
satisfy any

5.03.

Use of Proceeds by Landlord. The proceeds of the Letter of Credit shall constitute Landlord's sole

and separate
may immediately

F-9

then Landlord shall not be obligated to make such payment in the amount of the unused Letter of Credit proceeds until either all preference issues relating to payments under this Lease have been

resolved in
dismissed,

5.04.

Additional Covenants of Tenant. If, as result of any application or use by Landlord of all or any part of the Letter of Credit, the amount of the Letter of Credit shall be less than the Letter of Credit Amount,

Tenant shall
deficiency
replacement

5.05.

Nature of Letter of Credit. Landlord and Tenant (a) acknowledge and agree that in no event or circumstance shall the Letter of Credit or any renewal thereof or substitute therefor or any proceeds thereof

(including
applicable
that

5.06.

Reduction in Letter of Credit Amount. Provided that, during the 12 month period immediately preceding

the effective
occurred u
that the

F-10

shall have no further right to reduce the Letter of Credit Amount as described herein. Any reduction in the Letter of Credit Amount shall be accomplished by Tenant providing Landlord with a

substitute l
reduced an

6.

Conference Room.

6.01.

During the Term, subject to the provisions of this Section 6, Tenant shall have the non-exclusive right to utilize the Conference Room (as defined in Section 2 of Exhibit C (Work Letter) of this

Lease) at t
(except as
and the bu

6.02.

Tenant's use of the Conference Room shall be subject to the following: (a) scheduling availability of the Conference Room; (b) the reasonable operating procedures, rules and regulations promulgated by

Landlord fr
North Poin
Conference

6.03.

Landlord reserves the right to discontinue providing the Conference Room for a period of up to 60 days in order to build out new Conference Room space in the Building or at 800 North Point if Landlord elects to convert

all or any
otherwise c
discontinue

6.04.

Landlord and Tenant acknowledge that the use of the Conference Room by Tenant and its employees and invitees shall be at their sole risk and that the terms and provisions of Section 13 (Indemnity and Waiver of

Claims) of

6.05.

The rights granted herein shall be personal to Tenant and shall not apply to any sublessee, transferee or to any successor in interest (other than an assignment pursuant to a Business Transfer).

7.

Deferred Space.

7.01.

Tenant hereby leases from Landlord and Landlord leases to Tenant approximately 963 total rentable square feet on the 2 nd floor as shown on

Exhibit A-3
effective as

7.02.

The term for the Deferred Space shall commence on the date (the ? Deferred Space Commencement Date ?) which is the earlier to occur of (i) the date identified in a written early commencement letter

from Tenant
and (ii) the

7.03.

The Deferred Space shall be leased by Tenant pursuant to all the terms and conditions of the Lease, except that the financial terms and conditions for the Deferred Space shall be as follows:

a.

The Base Rent rate per square foot for the Deferred Space shall be the same as the Base Rent rate per square foot for the Premises on the Deferred Space Commencement Date. The Base Rent rate per square foot for the

Deferred S
of the origi
Space.

b.

Tenant shall pay Tenant?s Pro Rata Share of Expenses and Taxes for the Deferred Space on the same terms and

conditions
for the add

F-12

8.

Initial Suite Signage and Building Directory. Notwithstanding anything to the contrary contained in Section 3 and Section 4 of Exhibit E (Building Rules and Regulations) of the Lease,

Landlord, a
standard g
to the initia

9.

Environmental Substances.

? Environmental

Law(s) ? n
and orders
environmen

? Environmental Substances ? means, but shall not be limited to, any hazardous substances, hazardous waste, environmental

substances
chemical, l

reasonably

F-13

mentioned under or regulated by any Environmental Law; and the regulations adopted under these acts, and including any other products or materials subsequently found by an authority of competent

jurisdiction

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such documents, affidavits and information as may be requested by Landlord (1) to comply with any Environmental Law or Laws, (2) to comply with the reasonable request of any lender,

purchaser
notify Land
or about th

10.

Hazardous Medical Waste.

Tenant hereby agrees to furnish to Landlord upon

demand, w
Hazardous
of a comm

? Hazardous Medical Waste ? is defined as used needles and syringes, gloves and linen, uniforms and laundry, and cleaning

equipment
harmful aff
materials th

F-15

? Infectious Waste ? is defined as any waste that contains pathogens or is capable of producing infectious disease; material contaminated by potentially infectious materials

(taking into
adequate c
contains pa

A. Cultures and stocks of agents infectious to humans, and associated biologicals (including but not limited to cultures from

medical lab
dishes and

B. Human pathological wastes [including but not limited to tissue, organs and body parts (except teeth and the contiguous

structures
fluids and t

C. Discarded waste blood and blood components (including but not limited to serum and plasma) and saturated material containing

free flowing

Tenant further agrees that: (a) Tenant?s employees and agents shall be expressly forbidden from disposing of

any

Hazardous
the terms of
removed from

F-16

damages, penalties, claims, costs, charges or expenses, including without limitation, attorney's fees, clean-up costs, fines or penalties arising out of or resulting from Tenant's

violation of

11.

Lab Standards.

Tenant shall keep and maintain the Lab Space in accordance with

all applicable
biomedical

A. In no event shall Tenant bring any live animals onto the Property or any animal body parts that are not considered raw food

by the Food
the Property
designate.

B. Without limiting the limitations imposed by the Permitted Use clause, Tenant shall not use or permit the Lab Space to be

used for any
Lab Space

expense, s

F-17

without limitation, all needles, syringes, bloodbags, bandages and vials) and all animal bodies or parts and the removal thereof from the Lab Space. Tenant agrees to comply with all Laws,

ordinances
generation
(including v

F. In the event Tenant?s activities in the Project results in any unreasonable disturbance, disruption of or interference

with the k

confrontation
then

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EXHIBIT G

FORM OF LETTER OF CREDIT

This Exhibit is attached to and made a part of the Office Lease Agreement (the "Lease") by and between
BRE/COH GA LLC, a

Delaware limited liability company
("Tenant")

[Name of Financial Institution]

Irrevocable Standby Letter of Credit

No.

Issuance

Date:

Expiration

Date:

Applicant: Clearside Biomedical, Inc.

Beneficiary

BRE/COH GA LLC

c/o Equity Capital

222 South Riverside Plaza

Suite 2000

Chicago, Illinois 60606

Attention: T

Ladies/Gentlemen:

We hereby

1.

An original copy of this Irrevocable Standby Letter of Credit.

2.

Beneficiary's dated statement purportedly signed by an authorized signatory or agent reading: "This draw in the amount of U.S. Dollars

(\$) under y

It is a condition of this

Irrevocable
the expirati
expiration o

G-1

applicable anniversary thereof, we notify you in writing, by certified mail return receipt requested or by recognized overnight courier service, that we elect not to so renew this Irrevocable

Standby Le
LLC, c/o L
Property M

No. 590.

We hereby engage with you to honor drafts and documents drawn under and in compliance with the terms of this
Irrevocable Standby Letter of

Credit.

to the attention of

.

Very truly yours,

[name]

[title}

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